Impact of the Judgement: Subsequent to this judgement, the Election Commission made provision in the ballot papers/EVMs for None of the Above (NOTA) option. The provision for NOTA has been made since General Election to State Legislative Assemblies of Chhattisgarh, MP, Mizoram, NCT of Delhi and Rajasthan in 2013 and continued in the General Election to State Legislative Assemblies of Andhra Pradesh, Arunachal Pradesh, Odisha and Sikkim in 2014 along with the General Elections to the Sixteenth Lok Sabha (2014)[23].

LILY THOMAS CASE (2013)

Name of the Case	: Lily Thomas vs. Union of India
Year of Judgement	: 2013
Popular Name	: —
Related Topic/Issue	: Criminalization of politics
Related Article/Schedule	: 102 & 191

Supreme Court Judgement: It held that the members of the Parliament and the State Legislatures, who have been convicted for offences, will loose their membership of the House immediately (i.e., the disqualification takes place from the date of conviction). It struck down Section 8(4) of the - Representation of the People Act, 1951 and declared the same as unconstitutional. Under this Section, the convicted members of the Parliament and the State Legislatures are given three months time to appeal in the higher court and get a stay on their conviction and sentence by the trial court. The court ruled that the Parliament does not have the power under Articles 102 and 191 to make different laws for a person to be disqualified for being chosen as a member and for a person to be disqualified for continuing as a member of the Parliament or the State Legislature. Hence, the above Section 8(4), which carved out a saving in the case of a sitting member from disqualification, is beyond the powers conferred on the Parliament and is ultra vires the constitution.

Impact of the Judgement: This judgement led to the immediate disqualification of a number of convicted members of the Parliament and the State Legislatures. In order to nullify this ruling of the Supreme Court, the Representation of the People (Second Amendment and Validation) Bill, 2013 was introduced in the Parliament. However, this Bill was later withdrawn by the Government.

T.S.R. Subramanian Case (2013)

Name of the Case	: T.S.R. Subramanian vs. Union of India
Year of Judgement	: 2013
Popular Name	: —
Related Topic/Issue	: Civil service reforms
Related Article/Schedule	: —